

## 20SMCV00916 20SMCV00916

County: los-angeles

Division: Civil Law and Motion

Department: M

Hearing date: 2026-08-13

Source URL: [https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept\\_date=SM%20%2CM%2C08%2F13%2F2026](https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SM%20%2CM%2C08%2F13%2F2026)

Source SHA-256: ffca73accf991d5abd2d112bf810d499b44966920ae382d5cd5d0e375177693f

Case Number: 20SMCV00916 Hearing Date: August 13, 2026 Dept: M

CASE NAME: Hirsh, et al.,

v. Gail, et al.

CASE NO.: 20SMCV00916

MOTION: Motion

to Compel Initial Discovery Responses (Post-Judgment)

HEARING DATE: 8/13/2026

Legal

Standard

Code of

Civil Procedure ("CCP") section 708 et seq. permits discovery to aid in enforcement of the money judgment. CCP section 708.020 states in relevant part:

(a) The judgment creditor may propound written interrogatories to the judgment debtor, in the manner provided in Chapter 13 (commencing with Section 2030.010) of Title 4 of Part 4, requesting information to aid in enforcement of the money judgment. The judgment debtor shall answer the interrogatories in the manner and within the time provided by Chapter 13 (commencing with Section 2030.010) of Title 4 of Part 4.

[...]

(c) Inspection demands served pursuant to this section may be enforced to the extent practicable, in the same manner as inspection demands

in a civil action.

If a

party to whom interrogatories are directed fails to serve a timely response, the propounding party may move for an order compelling responses and for a monetary sanction. (CCP § 2030.290(b).) The statute contains no time limit for a motion to compel where no responses have been served. All that need be shown in the moving papers is that a set of interrogatories was properly served on the opposing party, that the time to respond has expired, and that no response of any kind has been served. (Leach v. Superior Court (1980) 111 Cal. App. 3d 902, 905-906.)

CCP

section 708.030 states in relevant part:

(a) The judgment creditor may demand that any judgment debtor produce and permit the party making the demand, or someone acting on that party's behalf, to inspect and to copy a document that is in the possession, custody, or control of the party on whom the demand is made in the manner provided in Chapter 14 (commencing with Section 2031.010) of Title 4 of Part 4, if the demand requests information to aid in enforcement of the money judgment. The judgment debtor shall respond and comply with the demand in the manner and within the time provided by Chapter 14 (commencing with Section 2031.010) of Title 4 of Part 4.

[...]

(c) Inspection demands

served pursuant to this section may be enforced to the extent practicable, in the same manner as inspection demands in a civil action.

Where

there has been no timely response to a CCP section 2031.010 inspection demand, the demanding party must seek an order compelling a response. (CCP § 2031.300.) Failure to timely respond waives all objections, including privilege and work product. Thus, unless the party to whom the demand was directed obtains relief from waiver, he or she cannot raise objections to the documents demanded. There is no deadline for a motion to compel responses. Likewise, for failure to respond, the moving party need not attempt to resolve the matter outside court before filing the motion. Where the motion seeks only a response to the

inspection demand, no showing of "good cause" is required.

## ANALYSIS

Plaintiff/Judgment Creditor Richard and Diana Hirsh, Cielo Farms LLC, and Cielo Malibu Estate Vineyards LLC move to compel Defendant/Judgment Debtor Leslie Gail ("Gail") to serve within 15 days, code-compliant responses without objections to: (i) Richard Hirsh's Post-Judgment Requests for Production of Documents to Leslie Gail, Set One and (ii) Richard Hirsh's Post-Judgment Special Interrogatories to Leslie Gail, Set One (collectively, the "Post-Judgment Discovery").

Plaintiffs demonstrate that they served the Post-Judgment Discovery on Gail in November 2025, yet Gail provided no response. (King Decl., ¶¶ 2-5.) The Court is not in receipt of an opposition. However, Plaintiffs' reply suggests that Gail has responded to the motion. The reply shows that Gail provided some substantive responses to the interrogatories, but did not provide verifications, which is not a valid response. (Supp. King Decl., ¶ 2, Ex. E.) There are simply no responses to the discovery.

Accordingly, the motion is GRANTED.